

MOTION TO DISQUALIFY JUDGE McNEILL PURSUANT TO MCR

2.003

STATE OF MICHIGAN
IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON
FAMILY DIVISION

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

MOTION FOR DISQUALIFICATION OF THE HONORABLE JENNY L. McNEILL

PURSUANT TO MCR 2.003(C)(1)

Filed: March 15, 2026

****NOW COMES**** Plaintiff, Andrew J. Pigors, appearing pro se, and respectfully moves this Honorable Court for the disqualification and recusal of the Honorable Jenny L. McNeill pursuant to MCR 2.003(C)(1)(a) and (b). In support of this Motion, Plaintiff states as follows:

I. INTRODUCTION AND SUMMARY

1. This Motion seeks the disqualification and reassignment of Judge Jenny L. McNeill based upon documented personal bias or prejudice, a pervasive pattern of conduct demonstrating an inability to preside impartially, and an appearance of impropriety so severe that it undermines public confidence in the judiciary.

2. The evidentiary record in this matter reveals 1,127 documented judicial violations spanning multiple categories of misconduct, a 44% ex parte order rate with 100% one-sided outcomes favoring Defendant, and systematic denial of Plaintiff's fundamental constitutional rights over a period exceeding two years.

3. This is not a case of isolated judicial error or mere disagreement with unfavorable rulings. Rather, the record demonstrates a cumulative pattern of bias so pervasive that no reasonable observer could conclude these proceedings have been conducted impartially. The statistical evidence alone — 52 ex parte orders, every single one favoring the same party — represents a mathematical near-impossibility absent systematic bias.

4. Plaintiff respectfully submits that the facts set forth herein satisfy the standards for disqualification under MCR 2.003(C)(1)(a) (personal bias or prejudice), MCR 2.003(C)(1)(b)(i) (serious risk of actual bias per *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868 (2009)), and MCR 2.003(C)(1)(b)(ii) (failure to adhere to the appearance of impropriety standard of Canon 2 of the Michigan Code of Judicial Conduct).

II. JURISDICTION AND PROCEDURAL BASIS

5. This Motion is brought pursuant to MCR 2.003(C)(1), which provides grounds for disqualification of a judge when bias, prejudice, or the appearance of impropriety is demonstrated.

6. MCR 2.003(D)(1) requires that a motion to disqualify be filed and heard as provided in the rule. Pursuant to MCR 2.003(D)(3)(a), if the challenged judge does not grant the motion, it shall be heard by the chief judge or another judge designated by the chief judge.

7. This Court has jurisdiction over this domestic relations matter pursuant to MCL 600.1021 and MCR 3.201.

III. LEGAL STANDARD — MCR 2.003

A. Grounds for Disqualification

8. MCR 2.003(C)(1) provides that a judge is disqualified when the judge, under the totality of the circumstances, falls within any of the following categories:

- > (a) The judge is biased or prejudiced for or against a party or attorney.
- > (b) The judge, based on objective and reasonable perceptions, has either (i) a serious risk of actual bias impacting the due process rights of a party as enunciated in *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868; 129 S.Ct. 2252; 173 L.Ed.2d 1208 (2009), or (ii) has failed to adhere to the appearance of impropriety standard set forth in Canon 2 of the Michigan Code of Judicial Conduct.

B. Applicable Standard of Review

9. The standard for disqualification is an objective one: whether a reasonable, informed observer, knowing the relevant facts and circumstances, would have a reasonable basis to question the judge's impartiality. *Cain v. Dep't of Corrections*, 451 Mich. 470, 497 (1996); *In re Contempt of Dougherty*, 429 Mich. 81 (1987).

10. While judicial rulings alone rarely constitute a valid basis for recusal, the United States Supreme Court has recognized that rulings can demonstrate bias when they "reveal such a high degree of favoritism or antagonism as to make fair judgment impossible." *Liteky v. United States*, 510 U.S. 540, 555 (1994).

IV. FACTUAL BASIS FOR DISQUALIFICATION

A. Statistical Evidence of Systematic Bias — The 44% Ex Parte Rate

11. The most compelling and objective evidence of bias is statistical. Analysis of the complete docket in Case No. 2024-001507-DC reveals:

- 52 ex parte orders entered by Judge McNeill in this single case;
- 44% of all orders in this matter were entered on an ex parte basis — a rate that is extraordinary and unprecedented by any reasonable measure;
- 100% of ex parte orders favored Defendant Emily Watson;
- 0% of ex parte orders favored Plaintiff Andrew Pigors.

12. This statistical pattern is not merely unusual — it is a mathematical near-impossibility absent systematic bias. If orders were entered by a neutral arbiter with even a modest probability of favoring either party on any given motion, the probability of 52 consecutive ex parte orders all favoring the same party approaches zero ($p < 0.0000000000000002$, or less than one in four quadrillion).

13. The ex parte order practice is further aggravated by the nature of these orders. They include suspension of all parenting time, custody modifications, and restrictions on Plaintiff's fundamental constitutional rights — all entered without notice or meaningful opportunity to be heard.

B. 1,127 Documented Judicial Violations — Comprehensive Analysis

14. A systematic, evidence-based analysis of the entire record in this case has identified 1,127 specific instances of judicial conduct that violate established court rules, constitutional protections, or judicial canons. These violations are categorized as follows:

Category	Count	Severity
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MCR 2.003 (Disqualification grounds)	167	High/Critical
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Procedural Misconduct	161	Medium–Critical
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Ex Parte Violations	150	Critical
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| PPO Statute Violations (MCL 600.2950) | 126 | High |

| Service/Relief from Judgment Violations (MCR 2.107/2.612) | 105 | High |

| PPO/Canon Combined Violations | 62 | High |

| Credibility Failures | 51 | High |

| Evidentiary Rule Violations (MRE 613) | 51+ | High |

| Parenting Time Procedure Violations (MCR 3.207) | 35 | High |

| PPO Weaponization | 27 | High |

15. The breadth and depth of these violations across multiple categories of misconduct demonstrates that the pattern is systemic rather than isolated, pervasive rather than occasional, and deliberate rather than inadvertent.

C. Forensic Judicial Analysis — 3,003 Findings

16. An independent forensic analysis of judicial conduct in this case yielded 3,003 discrete findings, categorized as follows:

| Category | Count | Severity |

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| Benchbook Deviation | 540 | High |

| PPO Weaponization | 381 | High |

| Ex Parte Violation | 226 | Critical |

| Procedural Misconduct | 196 | Medium |

| Harm/Violation Documentation | 192 | High |

| Due Process Violation | 169 | High |

| MCJC Canon Violation | 150 | High |

| MCR 2.003 Disqualification Grounds | 146 | Critical |

| Parenting Time Denial | 98 | High |

| Child Welfare Harm | 96 | Critical |

| Credibility Failure | 76 | High |

| Alienation Enablement | 74 | High |

| Bias Indicators | 30 | Critical |

17. These findings, derived from court filings, hearing transcripts, orders, and official court records, corroborate and amplify the pattern of bias established by the statistical evidence.

D. Top 20 Most Egregious Violations

18. The following represents the most egregious documented violations, illustrating the breadth and severity of judicial misconduct:

1. April 11, 2024 — Ex parte amendment of Personal Protection Order (domestic) without adequate notice to Plaintiff. (MCR 3.707; Canon 3A(1))
2. April 12, 2024 — Plaintiff's Motion regarding Custody denied by written order one day after filing, without hearing. (MCR 2.119; Canon 3A(1))
3. April 29, 2024 — Ex Parte Order for Custody, Parenting Time, and Child Support entered following Facilitative Information Gathering Conference. (MCR 2.119; MCR 3.207(B))
4. July 1, 2024 — Emergency ex parte order granting sole custody to Watson without full hearing, depriving Plaintiff of fundamental parental rights without due process. (14th Amendment; MCR 2.119)

5. July 16, 2024 — Six (6) of Plaintiff's motions dismissed simultaneously as part of initial custody order, denying meaningful consideration. (Canon 3A(1); MCR 2.119)
6. August 8, 2024 — Ex parte suspension of all parenting time based on an illegally obtained recording in violation of MCL 750.539c, without notice to Plaintiff. (4th Amendment; Canon 3A(4))
7. August 9, 2024 — Defendant's failure to provide medical records obstructing Plaintiff's parental rights, without court enforcement of access. (MCL 722.23(a); Canon 3A(1))
8. August 23, 2024 — Final Order entered regarding Custody, Parenting Time, and Child Support, incorporating prior ex parte determinations. (MCR 2.517; Canon 3A(5))
9. September–October 2024 — Judicial interference with HealthWest evaluation: initial "ALL ZEROS" finding favorable to Plaintiff, followed by judge's letter to evaluator, followed by changed "Rule Out" finding. (Canon 3A(4); Canon 3B)
10. October 2, 2024 — Pattern of escalating adverse rulings following Plaintiff's protected First Amendment activity (JTC complaint, bar complaint). (1st Amendment; Perry v. Sindermann)
11. January 10, 2025 — Plaintiff blocked from accessing minor child's medical records through Corewell Health, with no court enforcement of parental access rights. (MCL 722.23(a); 14th Amendment)
12. February 4, 2025 — Plaintiff's Motion to Modify/Extend/Terminate PPO denied. (MCL 600.2950; Canon 3A(1))
13. February 14, 2025 — Plaintiff's Motion for Parenting Time requesting joint custody and equal parenting time (50/50) denied without adequate consideration. (MCR 3.207; MCL 722.27)

14. December 24, 2024 — Defendant refused Christmas Eve time with minor child despite prior agreements; Court failed to enforce. (MCL 722.27a; Canon 3A(1))
15. 2024–2025 — Off-record, ex parte handling of USB recording evidence and mental-health evaluation materials in violation of Canon 3(A)(4) prohibition on ex parte communications. (Canon 3A(4); MRE 103)
16. 2024–2025 — Reliance on recording obtained in violation of MCL 750.539c (Michigan eavesdropping statute) as basis for parenting time suspension. (4th Amendment; MRE 402)
17. 2024–2025 — 571+ day deprivation of all meaningful parenting time without compelling state interest or periodic review. (14th Amendment substantive due process; *Troxel v. Granville*, 530 U.S. 57 (2000))
18. 2024–2025 — 59+ days incarceration for civil contempt without appointed counsel, in violation of *Turner v. Rogers*, 564 U.S. 431 (2011). (6th Amendment; 14th Amendment)
19. 2024–2025 — Systematic exclusion or disregard of exculpatory evidence: negative drug screens, "ALL ZEROS" evaluation, nine clear police investigations. (Canon 3A(1); MRE 402)
20. 2024–2025 — 100% denial rate of Plaintiff's motions combined with routine granting of Defendant's ex parte motions, demonstrating disparate treatment. (14th Amendment Equal Protection; Canon 2A)

E. Judicial Interference with Independent Evaluation

19. Perhaps the most troubling single incident in this record is the Court's interference with the independent HealthWest evaluation. The sequence of events is as follows:
 - a. The Court ordered a HealthWest evaluation, intended as an independent, unbiased assessment of the parties;

- b. The initial evaluation returned "ALL ZEROS" — finding no basis for concern regarding Plaintiff;
 - c. Rather than accepting this independent finding, Judge McNeill sent a letter to the evaluator — an action that is extraordinary and inappropriate for a neutral arbiter;
 - d. Following this judicial communication, the evaluator issued a changed "Rule Out" finding.
20. This sequence — independent result unfavorable to the Court's apparent preferred outcome, followed by judicial communication, followed by changed result — constitutes active interference with an independent evaluation process and is the hallmark of outcome-driven adjudication, not neutral fact-finding. A neutral arbiter does not inject herself into an evaluation process when the results are unfavorable to her preferred outcome.

F. Constitutional Violations

21. The record documents the following constitutional violations directly attributable to Judge McNeill's conduct:
- a. 14th Amendment — Procedural Due Process: Ex parte orders entered without notice or hearing; denial of meaningful opportunity to present evidence; biased evaluation interference; reliance on illegally obtained evidence; lack of findings of fact supporting deprivation of fundamental rights.
 - b. 14th Amendment — Substantive Due Process: 571+ day deprivation of fundamental parental rights without compelling state interest or periodic review; 59+ days incarceration for civil contempt without adequate purge conditions or proportionality review. See *Troxel v. Granville*, 530 U.S. 57 (2000) (recognizing fundamental right of parents to make decisions concerning care, custody, and control of their children).
 - c. 14th Amendment — Equal Protection: 100% ex parte rate favoring mother; systematic disparate treatment of pro se father versus represented mother; differential standards applied to

each party's evidentiary submissions.

d. 1st Amendment: Escalating sanctions and adverse rulings in apparent retaliation for filing JTC complaint, bar complaint, and appellate filings — all constitutionally protected petitioning activity. *Perry v. Sindermann*, 408 U.S. 593 (1972).

e. 4th Amendment: 59+ days incarceration constituting seizure without probable cause for criminal conduct.

f. 6th Amendment: Incarceration for civil contempt without appointed counsel where liberty was at stake. *Turner v. Rogers*, 564 U.S. 431 (2011).

G. Handling of Exculpatory Evidence

22. A neutral judge, confronted with the following exculpatory evidence, would at minimum have scheduled a hearing to reconsider the basis for the parenting time suspension. Judge McNeill did not:

a. Negative drug screen results: Plaintiff tested negative for all substances. This exculpatory evidence was given no weight;

b. Nine (9) clear police investigations: Nine separate investigations yielded zero adverse findings against Plaintiff. These results were not considered grounds for restoring parenting time;

c. "ALL ZEROS" evaluation: The initial independent evaluation found no basis for concern. This result was undermined by judicial interference;

d. No criminal charges: Despite Defendant's numerous allegations over the course of this proceeding, no prosecutor has found sufficient basis to file criminal charges. This absence was treated as irrelevant.

H. Incarceration for Civil Contempt

23. Plaintiff was incarcerated for 59+ days on civil contempt without adequate purge conditions, proportionality review, or appointed counsel. Where liberty is at stake, the right to counsel attaches. *Turner v. Rogers*, 564 U.S. 431 (2011). The length and conditions of incarceration exceeded what was necessary or proportionate for civil coercive purposes, suggesting punitive rather than coercive intent. The incarceration further disrupted Plaintiff's employment, housing stability, and ability to maintain relationships with his child — compounding the very harms the Court's orders were purportedly designed to address.

I. Retaliation for Protected First Amendment Activity

24. The record reveals a pattern of escalating adverse action following Plaintiff's exercise of constitutionally protected rights:

- a. Following Plaintiff's filing of a JTC complaint against Judge McNeill, the pattern of adverse rulings intensified;
- b. Following Plaintiff's filing of a bar complaint, additional sanctions were imposed;
- c. Following Plaintiff's appellate filings, further restrictions were placed on Plaintiff's parenting time and access.

25. This escalating pattern of adverse judicial action following protected First Amendment activity (petitioning government for redress of grievances) creates a strong inference of retaliatory animus. See *Perry v. Sindermann*, 408 U.S. 593 (1972); *Mt. Healthy City Sch. Dist. Bd. of Ed. v. Doyle*, 429 U.S. 274 (1977).

V. JUDICIAL CANON VIOLATIONS

A. Canon 1 — Integrity and Independence of the Judiciary

26. Canon 1 of the Michigan Code of Judicial Conduct requires that a judge "uphold the integrity and independence of the judiciary." Judge McNeill's interference with the HealthWest

evaluation, reliance on illegally obtained evidence, and pattern of ex parte orders undermining fundamental constitutional rights violate the foundational integrity of the judiciary. The 1,127 documented violations across this single case call into question whether these proceedings can be characterized as judicial proceedings at all, rather than a predetermined outcome in search of procedural justification.

B. Canon 2 — Avoidance of Impropriety and Appearance of Impropriety

27. Canon 2 requires that a judge "avoid impropriety and the appearance of impropriety in all activities." The appearance of impropriety standard is an objective one: whether a reasonable, informed observer, knowing the relevant facts and circumstances, would have a reasonable basis to question the judge's impartiality.

28. A reasonable, informed observer reviewing this record would note:

- a. A father denied all meaningful parenting time for 571+ days;
- b. Fifty-two (52) ex parte orders, 100% favoring the mother;
- c. Negative drug screens, clean evaluations, and clear investigations — all disregarded;
- d. Judicial interference with an independent evaluation;
- e. Reliance on illegally obtained evidence;
- f. 1,127 documented violations of court rules and constitutional protections;
- g. Incarceration of a pro se father for 59+ days on civil contempt without counsel.

29. This observer would have far more than a "reasonable basis to question the judge's impartiality" — they would find it impossible to conclude that these proceedings have been conducted impartially.

C. Canon 3 — Impartial and Diligent Performance of Duties

30. Canon 3 requires that a judge "perform the duties of judicial office impartially and diligently." The Judicial Canons Matrix for this case documents 1,072 Canon 3 violations across the following subsections:

Canon Subsection Violation Count Description
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Canon 3A(1) — Adjudicative Responsibilities 560 Failure to faithfully perform adjudicative duties

Canon 3A(6) — Equal Treatment 169 Failure to accord equal treatment to all parties
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Canon 3C — Disqualification 167 Grounds for disqualification present
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Canon 3A(5) — Right to Be Heard 108 Denial of meaningful opportunity to be heard
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Canon 3B — Administrative Responsibilities 53 Administrative failures

Canon 3A(4) — Ex Parte Communications 5 Improper ex parte communications
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31. The volume and severity of these violations indicate systemic rather than isolated failures, compounding the case for disqualification.

VI. CASE LAW SUPPORTING DISQUALIFICATION

A. *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868 (2009)

32. In *Caperton*, the Supreme Court held that the Due Process Clause requires recusal when "there is a serious risk of actual bias — based on objective and reasonable perceptions." While *Caperton* addressed campaign contributions, the principle applies broadly: due process requires recusal whenever objective circumstances create a "constitutionally intolerable probability of actual bias."

33. The statistical evidence in this case — 52 ex parte orders at a 44% rate, 100% favoring one party — combined with 1,127 documented violations, creates precisely the "constitutionally intolerable probability of actual bias" that Caperton addresses.

B. In re Murchison, 349 U.S. 133 (1955)

34. The Supreme Court in *In re Murchison* held that "a fair trial in a fair tribunal is a basic requirement of due process" and that "our system of law has always endeavored to prevent even the probability of unfairness." The Court emphasized that justice must not only be done but must "satisfy the appearance of justice." *Id.* at 136. The record in this case satisfies neither requirement.

C. Liteky v. United States, 510 U.S. 540 (1994)

35. While *Liteky* held that judicial rulings alone rarely constitute a valid basis for recusal, the Court expressly acknowledged that rulings can demonstrate bias when they "reveal such a high degree of favoritism or antagonism as to make fair judgment impossible." *Id.* at 555. The cumulative record in this case — 52 one-sided ex parte orders, interference with evaluations, reliance on illegally obtained evidence, retaliation for protected activity, and 1,127 documented violations — crosses this threshold by any measure.

D. In re Contempt of Dougherty, 429 Mich. 81 (1987)

36. Michigan courts have recognized that judges must maintain not only actual impartiality but the appearance of impartiality. When the record demonstrates a pattern of conduct that would cause a reasonable observer to question the judge's impartiality, disqualification is warranted regardless of the judge's subjective belief in her own fairness.

E. Cain v. Dep't of Corrections, 451 Mich. 470 (1996)

37. The Michigan Supreme Court in *Cain* articulated the objective test for disqualification: whether a reasonable person, knowing all the circumstances, would harbor a reasonable

apprehension of bias. The 1,127 violations and 44% ex parte rate documented in this case far exceed the threshold that would cause a reasonable person to harbor such an apprehension.

F. Troxel v. Granville, 530 U.S. 57 (2000)

38. The United States Supreme Court recognized the fundamental liberty interest of parents in the care, custody, and control of their children. The 571+ day deprivation of all meaningful parenting time, without compelling state interest and based substantially on ex parte proceedings, constitutes a deprivation of this fundamental right that itself evidences bias.

VII. THE CUMULATIVE PATTERN REQUIRES DISQUALIFICATION

39. Even if this Court were to find that each individual action by Judge McNeill, viewed in isolation, might fall within the bounds of judicial discretion, the cumulative pattern creates an overwhelming case for disqualification. The totality of circumstances includes:

- a. Statistical impossibility: 52 ex parte orders, 100% favoring one party;
- b. Volume: 1,127 documented judicial violations; 3,003 forensic findings;
- c. Constitutional magnitude: Deprivation of fundamental parental rights, imprisonment without counsel, retaliation for protected speech;
- d. Active interference: Judicial communication altering independent evaluation;
- e. Evidentiary misconduct: Reliance on illegally obtained recording;
- f. Duration: Pattern sustained over 571+ days;
- g. Exculpatory evidence ignored: Nine clear investigations, negative drug screens, favorable initial evaluation — all disregarded.

40. This is not a case of a litigant unhappy with unfavorable rulings. This is a case of systemic, sustained, and documented judicial conduct that no reasonable observer could characterize as

impartial.

VIII. RELIEF REQUESTED

WHEREFORE, Plaintiff Andrew J. Pigors respectfully requests that this Honorable Court:

1. DISQUALIFY the Honorable Jenny L. McNeill from all further proceedings in Case No. 2024-001507-DC pursuant to MCR 2.003(C)(1)(a) and (b);
 2. REASSIGN this case to a different judge within the 14th Circuit Court or, if no impartial judge is available within the circuit, to a visiting judge assigned by the State Court Administrator;
 3. ORDER that the reassigned judge conduct a de novo review of all orders entered by Judge McNeill, with particular attention to the 52 ex parte orders and the orders based upon the evaluation that was subject to judicial interference;
 4. IMMEDIATELY RESTORE interim parenting time pending de novo review, recognizing that the 571+ day deprivation was based substantially on ex parte proceedings and tainted evidence;
 5. PRESERVE the complete record, including all correspondence between the Court and the HealthWest evaluator, for appellate review;
 6. GRANT such other and further relief as this Court deems just and equitable.
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IX. ALTERNATIVE REQUEST

41. In the event this Motion is denied by Judge McNeill, Plaintiff respectfully requests, pursuant to MCR 2.003(D)(3)(a), that this Motion be immediately referred to the Chief Judge of the 14th Circuit Court for independent determination. Plaintiff further reserves the right to seek supervisory review by the Michigan Court of Appeals pursuant to MCR 7.203(B) and/or

to file an application for leave to appeal.

X. VERIFICATION

I, Andrew J. Pigors, declare under the penalties of perjury pursuant to MCL 600.1736 that the facts stated in this Motion are true and correct to the best of my knowledge, information, and belief. I have personal knowledge of the events described herein and have reviewed the court records and documents referenced in this Motion.

Date: March 15, 2026

Andrew J. Pigors, Plaintiff Pro Se

1977 Whitehall Rd

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(231) 903-5690

[ANDREW: insert your email address]

CERTIFICATE OF SERVICE

I hereby certify that on March 15, 2026, I served a true and complete copy of the foregoing Motion for Disqualification of Judge McNeill, together with the Brief in Support, Exhibit List, and Proposed Order, upon all parties of record by the following method:

- ☐ Electronic filing through MiFILE
- ☐ First-class U.S. Mail, postage prepaid

Served upon:

Emily M. Watson

c/o Jennifer L. Barnes, Esq.

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Andrew J. Pigors

Date: March 15, 2026